



File No.: EXP202404373

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 12/08/2024, and based on the following

FACTS

FIRST: On 12/08/2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202404373, proceeding to archive the proceedings AI/00295/2024 regarding the complaint filed by the appellant on 5/03/2024, admitted for processing on 5/06/2024, and having given the prior procedure of transferring the complaint to B.B.B. (respondent) on 19/03/2024, who responded on 8 and 9/05/2024.

This resolution was notified to the appellant on 19/08/2024, as recorded in the acknowledgment of receipt in the file. It was also effectively notified to the respondent on that same date.

SECOND: The appellant submitted on 19/09/2024, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally based on the following:

1- "States that it intends for the taking of images of them with subsequent dissemination to be sanctioned," estimating that "in any case, regardless of the means by which the photos were taken, the dissemination of the same has not been carried out in compliance with the provisions of Article 6 of the GDPR," nor the principles set forth in Article 5 of the GDPR, among others, the principles of fairness and transparency.

Considers that they have provided photos in which their image appears while they were in front of the access door of their home, (...) and in the final stretch of the staircase leading to the (...) apartment, and that "consequently, they have necessarily been taken from the door of the respondent's apartment (...)."

Indicates that they are increasing the number of photos submitted, totaling 10.

2- States that the peephole subject to the complaint has a 3.2-inch TFT LCD screen, active in color, which, with just the press of a button, displays the exterior image for 10 seconds on the screen, with easy visibility, requiring little light to obtain a clear image and "that the photos have necessarily been taken from the door of the apartment (...) with a mobile device, using the screen of the digital peephole installed by the respondent on their door."

Adds:

- that the photos in "question have been examined by a professional photographer, who has stated that, due to their characteristics, they were taken with a mobile device from a digital screen."

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- "After installing a digital peephole of the same brand as the one belonging to the respondent on the door of my home, I have used the screen of the peephole to take photos with my mobile phone of the common landing, which I share with the respondent, photos that I have taken without any problems and that I submit as evidence. The photos of the common hallway taken with my mobile phone, through the screen of the digital peephole, are submitted as document number 2." and a copy of the invoice receipt for said digital peephole (...) "installed on my door," in document 3.

Document 2 contains photos, as stated in the title "taken with my mobile device from the digital peephole model (...)," and one can see, a first one with the door directly in front at a short distance, perhaps two meters, and part of the staircase to its left, before the area of the landing. The second photo, a little further away with the same shot. The door that is focused on has a (...) at the top but its content is not discernible. The position of the door that is visible is referenced because to its left is the staircase, possibly being the door (...).

In document 3, it is the invoice "date of sending 29/08/2024, digital peephole (...)," total price 54.71 euros.

3- The claimant reiterates what was stated in her complaint that "I became aware of the taking of the photos and their subsequent dissemination by the respondent, without my consent, because they were sent to me by a neighbor, via email, dated ***DATE.1.

The email of ***DATE.1 is submitted as document number 4. In the text of the email, the aforementioned "neighbor" states, "I am sending you the photos that the neighbor from (...) B.B.B. sent me when I was president and that I forwarded to the community administrator at the request of said neighbor, who claimed that in the photos he took, it is clearly seen how, according to him, you were cleaning the stairs with bleach and you were the cause of the paint damage on the stairs. Asking me to forward them to the administration as he did to request the subsequent repair." There are 13 attached files that are photos on screen, and in some of them, they coincide with those submitted by the claimant in her complaint, in which she is fully recognizable and identifiable.

4- The appellant indicates that the photos submitted as evidence have never been forwarded to the Community, nor the communication made in 2017 by the owner to the Community Administrator regarding the installation of the digital peephole, when it is the Community that is competent to assess these matters, in accordance with the provisions of Article 17.3 of the current Horizontal Property Law. She points out that in the meeting of the Community of Owners on 10/07/2024, she informed that she had filed a complaint regarding data protection and the reasons in light of the 13 photos that "were sent to me by a neighbor via email" and that the neighbors have not been informed of the existence of the communication from March 2017 regarding the installation of the digital peephole.

5- She concludes that the photos submitted were taken from the door of the apartment (...) with a mobile device using the screen of the digital peephole that the respondent has installed on his door, having to carry out a persistent surveillance task.

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from the screen of the digital peephole to take a total of 10 photos, having 10 seconds for the execution of each one.

"The fact that it has been certified by the selling company that the camera does not allow recording nor prevents the possibility that the images captured by the digital peephole are transmitted in real-time to the mobile device of the homeowner, as has occurred in the present case, and that through the captures made of said images, it has allowed them to communicate them to third parties without authorization," and that regardless of the means by which the photos were taken, they have been disseminated without complying with the requirements of Articles 5 and 6 of the GDPR.

LEGAL GROUNDS

I

The Presidency of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 and 2 of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

In relation to the statements made by the appellant, it is first necessary to complete the facts contained in the complaint and those obtained in the transfer that were outlined schematically.

In her complaint dated 5/03/2024, the complainant stated: "The respondent has installed a digital peephole at the door of her own home, without prior consent from the Community of Owners, which records the common landing of both, the access door to my home, and part of the staircase leading to the third floor, as evidenced by the photos taken of me in the common landing, at the access door to my home, and in part of the staircase of the third floor of the building, which have been attached to the

email sent on ***DATE.1 by a neighbor, President of the Community, with the following text: 'I am sending you the photos that the neighbor from (...) sent me when I was President, and which I forwarded to the Community administration at the request of said neighbor, who stated that in the photos he took, it is clearly seen how, according to him, he was cleaning the staircase with bleach and you were the cause of the damage to the staircase paint.'

She adds: "On ***DATE.2, point 7, in the Community of Owners, without notifying me of the existence of the photos, nor referring to them, an agreement was adopted obliging me to bear the cost of painting the staircase to remedy the damages caused."

According to the file of the complaint, which was archived by a resolution signed by the Director of the AEPD on 12/08/2024, the content of the photos provided by the complainant can be summarized as follows:

- Image number 13 is the image of a woman, possibly the complainant, in the landing that separates the door from which the image is taken of a C/ Jorge Juan, 6

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door that is behind her. She is wearing cleaning gloves and can be recognized. The person is possibly unaware of this image capture. The door visible behind her has the staircase on the right-hand side, and there is no sticker on its surface, which could mean it is the left door where the claimant states she lives.

- Image number 14 is of the same person, dressed the same, and is in profile in the same space, apparently cleaning as she is wearing the same gloves as in image 13.

- Image 15 is of the same person, with her back to the camera.

- In image 19, the same person is seen, but in another part of the landing, which is not in front of the door but in the staircase descent area.

On the other hand, the respondent provided in their response to the transfer of the claim:

- A written communication sent by the owner (a person whose name does not match that of the respondent) on 14/03/2017 by email to C.C.C., Administrator of the property ***ADDRESS.1, informing that "today" they will install a digital peephole model (...), stating in the subject that it is for the apartment (...), warning that "this model only serves for viewing, it does not capture images of any kind, nor does it take photos or record video, therefore, no data processing occurs with it, as it only captures images in real-time in front of the door," indicating that they are providing the "instruction manual."

Along with this, an acknowledgment of receipt from the recipient, indicating that it is forwarded to the President, and adding: "However, since it is not a construction as such, this communication would not be necessary, considering, moreover, that the peephole they are going to install does not allow recording or image capture."

- In the comparative table of models and prices of electronic peepholes provided, the (...) appears alongside five other models, with the one analyzed here being the cheapest at 49.45 euros, indicating that it does not have WIFI connectivity and does not record photos or videos. However, there is a model with WIFI connectivity that records photos and videos, and another without such connectivity that also records photos and videos. Two other models record photos.

- An email dated 11/04/2024 for the respondent, from (...) indicating that "the technical sheet of the model (...) is attached. As you will see in the characteristics, it does not indicate anything about recording videos and photos." There is no document specifying that it does not record, but I can confirm in this writing that this model is only for viewing the image on the other side of the door. It has a single button to turn on and off. It does not allow for video or photo recordings."

The technical sheet and user manual are provided as Doc. No. 2.

- In the USER MANUAL, it shows how to install the peephole and a description of its elements. It consists of a cable with a lens that is placed in the space towards the outside of the door.

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Additionally, it has a digital viewer in the form of a 3.2-inch TFT screen with a 0.3-megapixel CMOS sensor that rests on a stand, which operates on batteries and connects with the lens cable.

In point 4. OPERATION, it states "POWER BUTTON: PRESS AND RELEASE THE BUTTON. YOU WILL BE ABLE TO SEE THE IMAGE FOR 10 SECONDS."

- In the TECHNICAL SHEET provided, it also states:
- EASY TO USE: JUST PRESS THE BUTTON AND WE WILL HAVE THE IMAGE FOR 10 SECONDS.
- There is no view from the outside in such a way that protects the user's privacy.
- It requires very little light to obtain a clear image.
- Easy to assemble by anyone in less than 3 minutes.

On the other hand, in the response that the respondent gave to the AEPD in the transfer of the claim, they also indicated among other noteworthy circumstances: - "that from the technical sheet and the product manual, it is observed that it has a power button to turn the screen on and off to observe when someone rings the doorbell of the residence."

However, it is not recorded nor can it be deduced that the claimant rang the respondent's doorbell, as she has indicated that the photos were captured inadvertently, as well as provided without her knowledge to the then President of the Community, with the exact date unknown.

Likewise, from the product's technical sheet and installation manual, it is not expressly indicated in either that the screen can only be turned on and off when someone rings the doorbell, but it states in the installation manual: "4. Operation: 1. Power button: press and release the button. You will be able to see the image for 10 seconds," and in the technical sheet: "Features: easy to use: just press the button and we will have the image for 10 seconds."

Even in the event that the screen was only turned on, if someone rang from the outside, a fact that is not inferred from the claimant's statements, the claimant adds, after having acquired a camera like the respondent's, "it would require being with the screen on for ten seconds and taking photos, in constant surveillance," the truth is that various images have been captured in photographs of the claimant, which have been processed, used, and sent by a person who is the claimant's neighbor, then President of the Community.

III

The object of the GDPR according to its article 1 is:

"1. This Regulation establishes the rules relating to the protection of natural persons with regard to the processing of personal data and the rules relating to the free movement of such data."

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2. This Regulation protects the fundamental rights and freedoms of individuals and, in particular, their right to the protection of personal data.

In relation to the terms in which the claim is made, it has not been proven that the peephole acquired by the respondent recorded images or video, as both the instructions for the model, the email from the technical staff provided by the respondent, as well as the express acknowledgment of the claimant that she has acquired an identical one, rule this out.

The images of the claimant obtained by the respondent and communicated at the time by him to the person acting as President of the Community are personal data in the sense of Article 4 of the GDPR, which defines them as: "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic,

cultural, or social identity of that natural person.” It is clear that the images—photos—obtained, in this case, are personal data of the claimant.

Accepting the reality that images of the claimant were obtained, the GDPR defines the processing of personal data in its Article 4.2 as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction.”

In this case, personal data processing is carried out through the collection of images of the claimant, which were indicated to have been transferred to the then President of the Community by the respondent, without any date recorded for when this transfer occurred.

The next issue is to determine whether this data processing is covered by any legal basis. To determine the legal basis that legitimizes this data processing, we will refer to Regulation (EU) 2016/679 of the European Parliament and of the Council of 27/04/2016, General Data Protection Regulation (hereinafter GDPR), which establishes in its Article 6.1 the legal bases that legitimize data processing.

“Legality of processing

1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

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- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject requiring protection of personal data, particularly when the data subject is a child.

The provision in item f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

From the reading of the article, a general prohibition on data processing is derived unless one of the six legal bases listed from a) to f) is met. This is consistent with the general determination that is also integrated into Article 8.2 of the Charter of Fundamental Rights of the European Union, which states that data shall be processed for specific purposes and based on the consent of the affected person or under another legitimate basis provided by law.

The applicable sectoral regulation for property owner communities under horizontal property regime, Law 49/1960, of 21/07, on horizontal property implies that it is applicable by legal imperative when acquiring a property that operates under this regime, which is a modality of community of goods over the ownership of common elements. This regime implies that it is the responsibility of its members to maintain the common elements in co-ownership, with all owners obliged to bear the costs incurred for their maintenance, as well as to respect the general installations and common elements and to keep the property in good condition.

On the other hand, among the obligations of each owner, Article 9.1 of the LPH states:

- a) To respect the general installations of the community and other common elements, whether for

general use or private use of any of the owners, whether or not included in their apartment or premises, making appropriate use of them and avoiding at all times causing damage or deterioration. g) To exercise due diligence in the use of the property and in their relations with other owners and to be accountable to them for any violations committed and for any damages caused.

It is unnecessary to mention that each owner would be subject to these obligations, which could be enforced by the other co-owners interested in the proper maintenance of the common elements. In this case, the claiming owner was in a common space accessible and potentially traversed by residents of the property, and photographs were taken of her while she was apparently performing cleaning tasks in the landing of the property. Likewise, in this situation, she could have been seen by anyone other than the person capturing the images, given that she was in a space accessible to neighbors and people related to them.

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The act of transferring the images to the President of the Community, who is part of it and is also a representative body of the same, does not imply communicating the data to a third party, since in relation to what happens with the assets corresponding to it, he is responsible for the management of the regime of those common assets whose preservation is the responsibility of all owners, including the respondent. However, the President represents them in the concurrence of the collective of persons holding rights over the same building and affecting the respective holders. The data from the photographs have not left the circle of administration and management of the same Community, which is responsible for demanding the repair of any possible damages caused to the common assets. The capturing of the images in the photographs only reflects a moment in which the facts subject to the communication of the photographs of interest occur, pursuing the transmission to the then-President a general interest of the owners in not having to bear the costs of potential damages caused to the common assets, and the taking of the images may be necessary and suitable as graphic evidence against a mere verbal statement, for example.

Therefore, given the context, the purpose of safeguarding and defending the general and legitimate interests to which they are destined, and the minimal impact on the claimant's right compared to the common protection to which the photographs are destined, does not constitute any infringement of the principles and legitimizing basis of the processing under the GDPR, given the specific framework in which it occurs and the objective to which it is directed.

Consequently, this appeal for reconsideration does not alter the validity of the contested resolution.
IV

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appealing party, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 of the LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nonetheless, and despite the time that has passed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their form of initiation, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection **RESOLVES**:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on 12/08/2024, in file EXP202404373, by which the filing of the complaint referred to against B.B.B. was agreed.

SECOND: TO NOTIFY this resolution to A.A.A. and B.B.B.

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In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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